BUREAU OF ROLLS AND LIBRARY
APR 5 1919
DEPARTMENT OF STATE

ORDER BY FRANK L. POLK UNDER AUTHORITY
OF EXECUTIVE ORDER OF DECEMBER 3, 1918

AN ORDER CONCERNING THE SALE, TRANSFER AND RELEASE OF CERTAIN COPYRIGHTS, APPLICATIONS FOR LETTERS PATENT AND APPLICATIONS FOR THE REGISTRATION OF TRADE-MARKS AND COPYRIGHTS DETERMINED TO BELONG TO OR TO BE HELD FOR, BY, ON ACCOUNT OF OR FOR THE BENEFIT OF PERSONS DETERMINED TO BE ENEMIES NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT WITHIN THE PURVIEW OF THE TRADING WITH THE ENEMY ACT AND THE AMENDMENTS THERETO.

By virtue of the authority vested in the President by an Act of Congress entitled "An Act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30th, 1918, and prior fiscal years on account of War expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of War expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016, and signed by the President under the third day of December, 1918, I hereby, in the public interest make the following determination and order:

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The Alien Property Custodian may release and discharge the United States of America and any department thereof upon such terms and conditions as to the Alien Property Custodian may seem proper, from any and all claims and demands arising from any alleged infringement of the copyrights hereinafter referred to.

The Alien Property Custodian may sell at private sale without public or other advertisement to The Chemical Foundation, Inc., a corporation organized and existing under and by virtue of the laws of the State of Delaware at such place and upon such terms and conditions as to the Alien Property Custodian or his authorized agent may seem proper, all of the copyrights, the certificates of registration thereof and the publications upon which said registrations were granted, applications for letters patent and for the registration of trademarks and copyrights and all rights thereunder which the Alien Property Custodian may seize or have seized under the provisions of the said "Trading with the Enemy Act" and the amendments thereto now or hereafter enacted and which he from time to time shall determine relate to the objects and purposes of said The Chemical Foundation, Inc., as expressed and defined by its charter.

My reasons in the public interest for the foregoing determination, order, rule and regulation are: First: A similar order, rule and regulation relating to letters patent, trademarks and similar rights has been made by me the twenty-sixth day of February, 1919, and this order is supplemental thereto and necessary to fully

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carry out the objects and purposes of said order of February twenty-sixth, 1919.

Second: Said copyrights, applications for letters patent and for the registration of trademarks and copyrights can not be sold to the best advantage at public sale after public or other advertisement.

Third: The Chemical Foundation, Inc., has been incorporated for the purpose of holding letters patent, trademarks and similar rights relating to the chemical and allied sciences as a trustee for American industry, for the purpose of the Americanization of such industries as may be affected thereby, of eliminating alien interests hostile to said American industries and of the advancement of chemical and allied industries in the United States.

Fourth: The public interest will be best served by the administration by The Chemical Foundation, Inc., of the letters patent, trademarks, copyrights and applications therefor and similar rights permitted to be sold to it by this order and by my order of the twenty-sixth of February, 1919.

Fifth: A private sale will prevent said copyrights, applications for letters patent and for the registration of trademarks and copyrights from falling into the hands of purchasers who would be unwilling or unable to carry out the purposes of The Chemical Foundation, Inc., or would use the copyrights, applications for letters patent and for the registration of trademarks and copyrights for purely speculative purposes.

Sixth: It would be impossible to make a public sale of the said copyrights, letters patent and applications for

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the registration of trademarks and copyrights so as to secure the benefits to the public which a sale to The Chemical Foundation, Inc., would secure to the public.

Seventh: Unnecessary expense, delay and inconvenience may be avoided by a private sale.

Done in the District of Columbia, this 5th day of April, in the year of our Lord one thousand nine hundred and nineteen and of the Independence of the United States of America, the one hundred and forty-third.

Francis J. Daly

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